

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

COLONIAL MANOR MHC HOLDINGS, LLC
d/b/a COLONIAL MOBILE MANOR,
Plaintiff,

Case No.: 2017-CC-3814

v.

ROSARIO ALANIZ and ANY UNKNOWN
TENANT(s),
Defendants.

**MOTION FOR FINAL DEFAULT JUDGMENT FOR DAMAGES
AND JUDICIAL SALE**

COMES NOW the Plaintiff, COLONIAL MOBILE MANOR LIMITED, LLC d/b/a COLONIAL MOBILE MANOR, by and through the undersigned counsel, moves this Court to grant a final default judgment against Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), in the above-styled cause and Plaintiff alleges the following facts:

1. Plaintiff brought an action against the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s).
2. Plaintiff served the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT on October 9, 2017.
3. Defendants filed an answer to the Complaint, affirmative defenses and a motion to determine rent in this cause on October 16, 2017.
4. Plaintiff filed an emergency motion for entry into premises which was determined to be moot and the motion to determine rent, on November 29, 2017.
5. Pursuant to that Order, the Defendants were obligated to pay rent into the registry of

the Court by or before December 8, 2017 in order to prosecute their claimed defenses to the Plaintiff's complaint.

6. The Defendants failed to deposit rent into the registry of the Court and Plaintiff filed a Motion for Possession of the Premises on December 14, 2017, which was granted on December 15, 2017.

7. As a result of the Writ of Possession, the Plaintiff came to be in possession of the premises of Defendants on January 5, 2018.

8. By virtue of the Defendants having failed to pay rent into the Registry of the Court pursuant to the Court's Order, pursuant to Fla. Stat. §723.063(2), Defendants are in default as to the elements of the Plaintiff's complaint. "The failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default."

9. Plaintiff is entitled to a judgment against Defendant(s) for damages arising out of the mobile home residential lot rental agreement and Florida Statute Section 723.061 for failure to pay rent, maintenance expenses, late fees, court costs and reasonable attorney fees arising out of the bringing of this action.

10. Pursuant to the Affidavit of Indebtedness of Plaintiff's Residential Manager, incorporated into this Motion and attached as Exhibit A, Defendant is indebted to Plaintiff in the sum of \$4,182.48.

11. Pursuant to Fla. Statutes §713.691 Plaintiff is entitled to a lien against Defendants' personal property on Lot #42 in the possession of the Plaintiff, including the mobile home identified

below.

12. By virtue of the Writ of Possession issued and served upon the Defendant(s) on January 3, 2018, Plaintiff came to be in possession of personal property belonging to the Defendant, namely a 1973 *Manac Inc.*, *Vehicle Identification Nos. 0632689578A and 0632689578A*, which is located on Lot #42 of COLONIAL MOBILE MANOR, with the street address of 900 9th Avenue East, Palmetto, Florida, 34221, of the property leased by the Plaintiff to Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s).

13. Pursuant to Fla. Stat. § 45.031 Plaintiff is entitled to a judicial sale of the mobile home to satisfy its judgment for damages against Defendants.

14. Pursuant to Fla. Statutes § 723.068 Plaintiff is entitled to an award of attorney's fees by virtue of prevailing in an action to enforce rights arising out of a mobile home lot rental agreement. Plaintiff attaches an Affidavit of Attorney's Fees, as Exhibit B, and seeks an award of \$1,500.00.

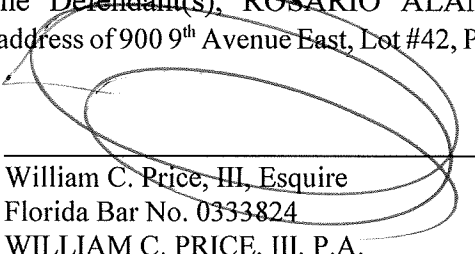
15. Plaintiff being entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendants, ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), it has perfected its landlord lien against the personal property of Defendants, namely the mobile home identified as a 1973 *Manac Inc.*, *mobile home, Vehicle Identification Nos. 0632689578A and 0632689578B*, to which Plaintiff is entitled to sell to satisfy its Judgment against Defendant.

16. The Plaintiff is entitled to credit toward the purchase of the mobile home in the sum representing all of Plaintiff's Judgment against the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), all costs of this proceeding and reasonable attorney's fees. An Affidavit of Costs in the amount of \$709.52 is incorporated into this Complaint and attached as Exhibit C.

WHEREFORE, the Plaintiff prays this Honorable Court to enter a judgment against the Defendants for damages as identified herein, to declare that the Plaintiff is entitled to a lien against the personal property of the Defendants in the possession of the Plaintiff, and to grant Plaintiff an order, ordering a judicial sale of the mobile home identified herein pursuant to Florida Statute §45.031 to occur between thirty (30) and forty-five (45) days from the rendition of judgment in the above-styled cause, to grant the Plaintiff a credit toward the purchase of the mobile home representing the unpaid balance of the Plaintiff's Judgment against Defendants, plus any costs expended by it for obtaining the judicial sale and a reasonable attorney's fee, and for any such further relief as the interests of justice require.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true copy of the foregoing Motion for Final Default Judgement for Damages and Judicial Sale has been furnished by U.S. Mail in accordance with Florida Rule of Judicial Administration 2.516 to DEREK EISEMANN, ESQUIRE, Syprett, Meshad, Resnick, Lieb, Dumbaugh, Jones, Krotec & Westheimer, P. A., 1900 Ringling Blvd., Sarasota, Florida 34236, by e-mail to deisemann@smr1.com and to the Defendant(s), ROSARIO ALANIZ and ANY UNKNOWN TENANT(s), at their last known address of 900 9th Avenue East, Lot #42, Palmetto, Florida, 34221 on this 18 day of January, 2018.



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